

SPR097886 Matter of Danny Rivera Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Petition for Approval of Accounting

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Petition for Approval of Accounting

Tentative Ruling: NO APPEARANCES REQUIRED. This petition is set for trial on January 22, 2027, at 8:30 a.m. in Dept. 63. The parties are ordered to continue to meet and confer to attempt to resolve any issues they can prior to trial.

The Petitioner's "Evidentiary Objections" Filed August 11, 2026 (the "Objections") are OVERRULED. The Objections cite no legal authority showing that the subject statements are inadmissible. The Objections consist entirely of arguments about the merits of the respondent's legal positions, not the admissibility of evidence, so they are unsound. See *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767. Evidentiary objections are for challenging evidence at trial or in connection with declarations and other evidentiary submissions, not for challenging legal arguments. Asserting the existence of an erroneous legal conclusion is not a valid evidentiary objection. See *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767, Fn. 8 [Statements in a memorandum of points and authorities are not evidence and "Objections" to such statements are ineffectual.]

Also, the Court does not strike Renee Rivera's Amended Response and Objection filed August 7, 2026 at this time. There is no noticed motion to strike before the Court as contemplated by California Code of Civil Procedure (CCP) §435. The Court also does not find it appropriate to use its power to strike pursuant to CCP §436(b) to address substantive deficiencies in the pleadings. See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528, as modified on denial of reh'g (Apr. 24, 2008).

As for the concerns raised at Objections number 5, 7, and 14, regarding the incorrect or fabricated case citations, those citations do not appear in the First Amended Response and Objection filed August 7, 2026. Therefore, the Court considers the impropriety to have been withdrawn or appropriately corrected. See CCP §128.7(c)(2).